

Sajid Ali v. State of U.P.

Allahabad High Court · Division Bench · 30 October 2015 · Writ-C No. 59070 of 2015 · **Writ disposed; petitioner relegated to 6.5(b) bill complaint.**

HEADNOTE

A consumer who disputes the correctness or accuracy of an electricity bill has a complaint under clause 6.5(b) of the U.P. Electricity Supply Code, 2005. The writ challenging the bill was disposed of with liberty to file that complaint before the Executive Engineer, who shall consider and decide it in accordance with law and the prescribed procedure.

FACTUAL SUMMARY

Sajid Ali filed a writ petition in the Allahabad High Court challenging the accuracy and correctness of a bill raised for consumption of electrical energy. The respondents included the State of Uttar Pradesh and officers of Purvanchal Vidyut Vitran Nigam Limited. The dispute concerned the consumption bill issued by Electricity Distribution Division-II, Ghazipur. The Court heard counsel for the petitioner and for respondents 2 and 3 and did not examine the bill figures on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

bill accuracy — 6.5(b) complaint

HOLDING

Where a consumer disputes the correctness or accuracy of a bill for electrical energy, clause 6.5(b) of the U.P. Electricity Supply Code, 2005 supplies the remedy of a complaint to the competent authority. The writ was disposed of with liberty to file that complaint before the Executive Engineer, Electricity Distribution Division-II, PuVVNL, Ghazipur, who shall consider and decide it in accordance with law and the prescribed procedure. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — ACCURACY AND CORRECTNESS OF THE ELECTRICITY BILL

Court did not examine the bill on merits and relegated the petitioner to the 6.5(b) complaint. ¶ 1